



File No.: EXP202406304

## RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on March 29, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right to erasure against AVATEL TELECOM, S.A.U. (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that, after canceling the service provided by the respondent on January 15, 2024, they requested the respondent to erase all their personal data, without receiving any response. They claim to have reiterated this request on February 6 and March 5 of the same year, again without receiving any response.

Along with their complaint and for evidentiary purposes, they submit the following documents:

- An email from the entity \*\*\*COMPANY.1 through which they were informed of the absorption of that entity by the respondent.
- Emails between the complainant and the respondent regarding the cancellation of services. The email through which the complainant receives information on how to cancel is \*\*\*EMAIL.1.
- Emails sent by the complainant to the aforementioned address \*\*\*EMAIL.1 requesting the erasure of their personal data.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on June 29, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present any arguments they deemed appropriate. On 07/08/2024, they submitted a document indicating the following:

"Dear Sirs:

We hereby respond to your response dated August 3, 2024, to our request for an extension of the deadline and access to the documents attached to the complaint. Upon detailed examination of the complaint made by Mr. A.A.A., the operator was in the integration phase with the company AVATEL TELECOM, S.A., following the merger by absorption of the company FIBRAMED TELECOM, S.L. The customer sent an email to exercise their rights to the incorrect company.

On our website, it is stated that to exercise their rights, they must send an email to [opd@avatel.es](mailto:opd@avatel.es) or [info@avatel.es](mailto:info@avatel.es).

We understand that this operation can generate confusion due to the absorption of a company. We will strive to be clearer and more precise in the future so that customers can exercise their rights without any difficulty. Additionally, as previously communicated, we have proceeded to correctly delete the customer's data. We apologize for any inconvenience caused.

Sincerely, AVATEL TELECOM, S.A.U."

However, no document has been provided that proves the communication and receipt by the complainant regarding the aforementioned erasure of their personal data.

FOURTH: The document submitted by the respondent has been examined and is also forwarded to the complainant, so that within ten working days they may formulate any arguments they deem appropriate, without submitting any arguments within the established timeframe.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions..."

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in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to provide evidence of having given the complainant the appropriate response.

The outcome of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on June 29, 2024, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: "When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the complainant was notified of the admission agreement. Once this period has elapsed, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

### Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure,

objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons if it does not intend to comply with such a request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

#### IV

##### Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;

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c) the data subject opposes the processing in accordance with Article 21, paragraph 1, and no other legitimate grounds for processing prevail, or the data subject opposes the processing in accordance with Article 21, paragraph 2;

d) the personal data has been unlawfully processed;

e) the personal data must be erased to comply with a legal obligation established in the law of the Union or of the Member States applicable to the data controller;

f) the personal data has been obtained in relation to the offer of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of its application, shall take reasonable measures, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any link to those personal data, or any copy or replica of the same.

3. Paragraphs 1 and 2 shall not apply when processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring processing of data imposed by the law of the Union or of the Member States applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 would make it impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims."

#### V

## Conclusion

In this case, the claiming party has demonstrated the exercise of their right to erasure by presenting repeated emails that went unanswered by the responding party.

The responding party, in its allegations, has justified the lack of response to the merger that occurred and indicated that on the website, it was stated that to exercise their rights, they should send it to a different email address. However, from the emails submitted by the claiming party, it is observed that they requested erasure at the same email where they were informed of the termination of services. In this sense, the responding party cannot excuse itself for not having received the request submitted, and should have forwarded it to the corresponding unit or at least informed the requester of the appropriate means or method to exercise their rights.

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Furthermore, in the aforementioned allegations, the responding party claims to have proceeded with the deletion of the personal data of the complaining party. However, despite this assertion, the right to deletion cannot be considered fulfilled as the responding party has not demonstrated the communication of such deletion to the complaining party. To comply with the obligations related to the rights encompassed in Articles 15 to 22 of the GDPR, it is necessary to address the requested right through communication and receipt of the same by the requester of the right within the timeframe indicated by the regulations.

In this regard, it should be specified that the response that corresponds to be made cannot be expressed merely as an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to estimate for formal reasons the lack of evidence of the response to the complaining party regarding their request, and to require the responding party to provide certification that proves such communication.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

TO ESTIMATE for formal reasons the complaint filed by A.A.A. against AVATEL TELECOM, S.A.U., considering that the provisions of Article 15 of the GDPR have been infringed, and to urge AVATEL TELECOM, S.A.U. to send the complaining party, within ten working days following the notification of this resolution, certification that addresses the requested right, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to AVATEL TELECOM, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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